

2:00 PM

LINE 17

25-CLJ-00768

BANK OF AMERICA, N.A. VS. ROBERTO RAFAEL SEMINARIO

BANK OF AMERICA, N.A.
ROBERTO RAFAEL SEMINARIO

ANTHONY DIPIERO
PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America, N.A.'s unopposed motion to deem facts admitted.

On May 2, 2025, plaintiff served by mail defendant Roberto Rafael Seminario with requests for admissions. (Declaration of Brian Langedyk, ¶ 2, Ex. 1.) More than thirty-five days have passed and there have been no responses. Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 18

25-CLJ-04634

WELLS FARGO BANK, N.A. VS. FRANCISCO J TORIBIO

WELLS FARGO BANK, N.A.
FRANCISCO J TORIBIO

EDGAR B LOPEZ
PRO SE

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Wells Fargo Bank, N.A.'s unopposed motion to deem facts admitted.

On August 20, 2025, plaintiff served by mail defendant Francisco J. Toribio with requests for admissions. (Declaration of Edgar B. Lopez, ¶¶ 2, 3 & Ex. 1.) More than thirty-five days have passed and there have been no responses. Plaintiff sent a meet-and-confer letter to defendant and there has been no response. (*Id.*, ¶ 5, Ex. 2.) Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
